

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his
official capacity as Attorney
General of the State of
Minnesota,

Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**PLAINTIFF'S MEMORANDUM OF LAW IN
SUPPORT OF MOTION TO ALTER OR AMEND
THE JUDGMENT UNDER FED. R. CIV. P. 59(e)**

I. INTRODUCTION

Plaintiff moves under Rule 59(e) to alter or amend the Judgment entered August 20, 2026 (ECF No. 28), which dismissed the Complaint on the grounds stated in the Order Granting Motion To Dismiss (ECF No. 27) (the "Order"). The motion is filed within twenty-eight days of the Judgment, as Rule 59(e) requires, and is a post-judgment motion within Local Rule 7.1(e). It is not a motion to reconsider under Local Rule 7.1(j), and it does not re-argue the opposition. It identifies four specific errors in the Order and the Judgment, each anchored to a sentence of the Order and to the record text that sentence cites or omits, and each of a kind Rule 59(e) exists to correct. None could have been raised before judgment, because each is an error in the Order's own reading of the record or in the form of the Judgment, not in the parties' arguments.

The four errors are these. *First*, the Order's standing holding describes the claim as a demand that the Attorney General investigate and prosecute third parties, and for that description cites Complaint ¶ 96 and ¶¶ 19–21. Those paragraphs say the opposite: ¶ 96 expressly preserves prosecutorial discretion and asks only that the petition be decided on the law as enacted, and ¶¶ 19–21 plead that the February 26 letter is false. *Second*, the Order holds that any federal injury "was complete at the time Kirchner received the letter" without addressing the paragraphs that

plead a present, continuing official disclaimer maintained across administrations, which is the ongoing conduct the Complaint asks the Court to enjoin. *Third*, the Order assumes "even if Kirchner is correct" that the office possesses the authority the letter disclaimed, and then holds there is no injury. On the injury actually pleaded, the assumption establishes the injury rather than defeating it, and the question assumed is a question of law that the statutes and Defendant's own briefing answer. *Fourth*, and at a minimum, the Judgment dismisses on jurisdictional grounds without stating that the dismissal is without prejudice, which the law of this Circuit requires.

Plaintiff files this motion in this action, as the Federal Rules provide. It is not a new action. (See Order at 8.)

II. THE RULE 59(e) STANDARD

Rule 59(e) "was adopted to clarify a district court's power to correct its own mistakes in the time period immediately following entry of judgment." *Innovative Home Health Care, Inc. v. P.T.-O.T. Assocs. of the Black Hills*, 141 F.3d 1284, 1286 (8th Cir. 1998); see *Banister v. Davis*, 140 S. Ct. 1698, 1703 (2020). Such motions "serve the limited function of correcting manifest errors of law or fact or to present newly discovered evidence," and "cannot be used to introduce new evidence, tender new legal theories, or raise arguments which could have been offered or raised prior to entry of judgment." *United States v. Metro. St. Louis Sewer Dist.*, 440 F.3d 930, 933 (8th Cir. 2006) (internal quotation marks omitted); *Ryan v. Ryan*, 889 F.3d 499, 507 (8th Cir. 2018). A proper Rule 59(e) motion therefore identifies "for the court a manifest error of law or fact that needs correcting." *Nordgren v. Hennepin County*, 96 F.4th 1072 (8th Cir. 2024) (No. 22-1902, slip op. at 5–6).

This motion does that and only that. It presents no new evidence and no new theory. Each ground below names the sentence of the Order that is in error, quotes the record the sentence cites, and states the correction. Where the motion cites legal authority not cited in the opposition, it does so for the Rule 59(e) standard itself (Part II), for the form the law of this Circuit requires of a jurisdictional dismissal (Part III.D), for the standard on post-judgment leave to amend (Part III.E), and, under Part III.C, as authority the Court may consult in construing a statute the Order assumed rather than construed, not as evidence and not as a new claim.

III. ARGUMENT

A. The Standing Holding Rests on a Description of the Claim That the Paragraphs It Cites Contradict.

The Order's standing analysis begins: "Kirchner is dissatisfied that Attorney General Ellison has refused to investigate and criminally prosecute entities that he believes engaged in criminal conduct. *See, e.g.*, ECF No. 1 ¶ 96." (Order at 5.) It then applies *Linda R.S. v. Richard D.*, 410 U.S. 614, 619 (1973), and *Parkhurst v. Tabor*, 569 F.3d 861, 866 (8th Cir. 2009), for the rule that a private citizen lacks a cognizable interest in the prosecution of another. (Order at 5.) Later, on *Ex parte Young*, the Order states: "Kirchner's grievance is that Attorney General Ellison has refused to commence criminal proceedings. *See, e.g.*, ECF No. 1 ¶¶ 19–21." (Order at 7.)

Paragraph 96 is the only record citation the Order gives for the compelled-prosecution description. The citation is introduced "e.g.," but no other paragraph is offered, and the only other paragraphs the Order cites for the same description (¶¶ 19–21) are addressed next.

Paragraph 96 is a prayer paragraph, and it reads in full:

ORDER Defendant to reconsider Plaintiff's February 10, 2026 criminal referral on the merits — applying the investigative authority vested in the Attorney General by Minnesota Statutes Section 8.31, Subdivision 1, rather than the false statement

of law disclaiming such authority — within sixty (60) days of this Court's order, with any subsequent determination resting on the proper exercise of prosecutorial discretion rather than on a disclaimer of statutory authority[.]

(Compl. ¶ 96.) The paragraph cited for the proposition that Plaintiff demands prosecution is the paragraph that expressly leaves the outcome to "the proper exercise of prosecutorial discretion." It asks that the answer, whatever it is, rest on the statute rather than on a disclaimer of the statute. The opposition said the same in terms: "Plaintiff does not seek to compel a particular prosecutorial outcome; the Prayer expressly preserves 'the proper exercise of prosecutorial discretion' as to any result." (ECF No. 15 at 21.)

Paragraphs 19 through 21, cited for the "refused to commence criminal proceedings" description, quote the letter's disclaimer (¶ 19), record that the letter redirected Plaintiff to an agency that had already disconnected his calls twelve times (¶ 20), and state the grievance in one sentence: "The February 26 letter is false." (¶ 21.) The grievance located in the cited paragraphs is falsity, not non-commencement.

The Order does note that Kirchner "clearly believes" the office has misread Minnesota law (Order at 5 (citing ¶ 21)), and then states that "Kirchner's purported injury that flows from that purported erroneous interpretation" is "Attorney General Ellison's refusal to prosecute the alleged wrongdoers." (*Id.*) That sentence is the substitution. No paragraph is cited for the injury it attributes to Plaintiff, and the paragraphs that plead the injury flowing from the false statement plead a different one: a petition foreclosed "without evaluation on its merits" (¶ 69), a citizen denied "access to the statutory process altogether" (¶ 70), and a petitioner "deterred . . . from further engaging the office" (¶ 71).

The injury the Complaint pleads is first-person. Plaintiff hand-delivered a criminal referral to the office (¶ 16); the office disposed of it by a letter stating that the Legislature "did

not delegate any such authority to this Office, nor did it delegate the authority to investigate criminal matters to this Office" (§ 19; Ex. A; Order at 2); and the Complaint pleads that this statement of law is false (§§ 2, 21, 35–47), that a petition foreclosed by a false statement of the office's authority is not a petition denied in the exercise of discretion (§§ 69–70), and that the false statement deterred Plaintiff from further engaging the office (§ 71). Count I is a Petition Clause claim by the addressee of the statement (§§ 68–73). The opposition presented the injury in exactly those terms, as "a specific denial of a specific referral by a specific official through a specific false statement," and distinguished it from any interest in the prosecution of others. (ECF No. 15 at 15–16, 21.)

Linda R.S. and *Parkhurst* answer a claim by a citizen who seeks another's prosecution. They do not address whether the person whose own petition was disposed of by an official misstatement of the office's legislated authority has suffered an injury of his own. The Order reached the *Linda R.S.* result only by substituting the first description for the pleaded claim, and the two record citations it supplies for the substitution are refuted by the text of the paragraphs cited. At the pleading stage the Court "must accept as true all facts pleaded" and construe the pleading liberally (Order at 4); a dismissal that rests on a description of the pleading that the cited paragraphs contradict is a manifest error of fact about the record, and the legal conclusion drawn from it is a manifest error of law. This ground was not available before judgment. The opposition answered Defendant's characterization of the claim (ECF No. 15 at 21), but the Order's citation of § 96 and §§ 19–21 as the record basis for that characterization first appears in the Order, and it is that citation, measured against the text of the paragraphs cited, that this Part asks the Court to correct.

Plaintiff does not ask the Court to re-weigh the standing arguments. He asks the Court to decide standing on the claim the Complaint pleads: whether the addressee of a false official statement of the office's statutory authority, whose own petition was disposed of by that statement and who was deterred from further petitioning, has alleged an injury in fact. The Order has not yet answered that question.

B. The Holding That the Injury Was "Complete at the Time" of the Letter Omits the Ongoing-Conduct Allegations the Complaint Pleads and the Relief It Seeks.

The Order holds that *Ex parte Young* does not apply because "any federal constitutional injury was complete at the time Kirchner received the letter from the Attorney General's Office," citing Complaint ¶ 71 and ¶ 77, and applies the rule that the doctrine does not reach cases where "federal law has been violated at one time or over a period of time in the past." (Order at 6–7 (quoting *Smith v. Reynolds*, 139 F.4th 631, 635 (8th Cir. 2025), and *Papasan v. Allain*, 478 U.S. 265, 277–78 (1986)).)

The Complaint pleads present conduct. Paragraph 22 quotes the disclaimer on the Attorney General's official website: "The Minnesota Legislature delegated the authority to investigate criminal matters to the county sheriff . . . It delegated the authority to prosecute criminal matters to the county attorney. It did not delegate such authority to this Office." (Compl. ¶ 22; Ex. B at 4.) Paragraph 23 pleads that the website disclaimer "is substantively identical to the February 26 letter," "has persisted across multiple administrations," and "constitutes an ongoing misrepresentation of Minnesota law to every citizen who visits the Attorney General's website." Paragraph 26 pleads that its persistence "establishes it as ongoing official policy of the Office of the Attorney General, not a one-time error," and pleads that continuity as the basis for prospective relief under *Ex parte Young*. Paragraph 78 pleads that the disclaimer "operates as a categorical bar." Paragraph 71, which the Order does cite, pleads a

forward-operating effect: the false statement "deterred Plaintiff from further engaging the office." And the relief sought is directed at the present conduct: correction of the website statement (§ 95), reconsideration of the pending petition free of the false predicate with discretion preserved (§ 96), and an injunction against future denials on the same false ground (§ 97).

The opposition briefed these paragraphs as the ongoing violation. (ECF No. 15 at 22–23 & n.4 (the website disclaimer "is ongoing"; Internet Archive captures at Ex. B, ECF No. 1-3 at 50, 52, show the same disclaimer under Defendant's predecessor); *id.* at 23 (the relief "is prospective").) The Order does not address §§ 22, 23, 26, or 78 (§ 78 appears only inside the range §§ 67–90 the Order cites at 3 to identify the four counts), and does not address whether a disclaimer still published by the office and still disposing of petitions is present conduct or the residue of a past act. (The Order cites the opposition at 27 for the ongoing-violation argument (Order at 6); the ongoing-conduct briefing sits at 22–23.)

That omission matters under the Order's own authority. *Papasan* distinguishes an ongoing violation from "cases in which federal law has been violated at one time or over a period of time in the past," 478 U.S. at 277–78, and the distinction turns on whether the challenged conduct is continuing. A disclaimer that the office maintains today, on its official site, as the stated basis for turning away petitions, is continuing conduct. Whether the Court ultimately agrees that it states an ongoing violation of federal law, the holding that the injury was "complete" on February 26 cannot be reached without addressing the allegations that plead otherwise. A ruling that resolves the ongoing-violation element against the pleader while omitting the paragraphs pleaded on that element is a manifest error of fact about the record. Plaintiff asks the Court to decide the *Ex parte Young* question on the conduct actually pleaded.

C. The Order's Assumption, Once Made, Establishes the Injury It Was Used to Deny, and the Question It Assumes Is a Question of Law the Court Was Bound to Decide.

The Order states: "But even if Kirchner is correct that the Minnesota Attorney General's Office possesses the authority to conduct the investigations and prosecutions he seeks, Kirchner 'lacks standing . . .'" (Order at 5.) Assuming a proposition *arguendo* is a legitimate device when the proposition is beside the point. Here it is the point. If the office possesses the authority the February 26 letter disclaimed, then the letter's statement of law was false; if it was false, Plaintiff's own petition was disposed of by a false statement of the office's legislated authority; and on the injury pleaded (Part III.A), that disposal is the injury. The assumption therefore supplies the element the Order holds missing. A holding that Kirchner lacks standing "even if Kirchner is correct" holds together only if the assumed-correct law is never allowed to reach the referral it was used to deny. On the claim as pleaded, the assumption and the holding cannot both stand, and the choice the Order made between them is an error of law that Rule 59(e) permits the Court to correct.

The question the Order assumed is also not one on which Plaintiff is merely "correct" or mistaken. Whether Chapter 8 confers on the Attorney General authority to investigate criminal matters is a question of the meaning of Minnesota statutes. It is a question of law, not a contested fact, and it is decided by reading the statutes rather than by the standing inquiry or the plausibility standard. The opposition presented the question as a predicate finding on the way to the federal claims, not as state-law relief (ECF No. 15 at 27–28), and *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 118–19 n.28 (1984), itself preserves that practice. The Order applied *Pennhurst* to the "ongoing violation of state law" it found in ¶¶ 33–47 (Order at 6) without addressing the predicate-finding distinction the opposition drew, and without construing the statutes. (*Compare* ECF No. 15 at 26–28, *with* Order at 6.)

The text answers the question the Order assumed. Section 8.31, subdivision 1 provides that the attorney general "shall investigate violations of the law of this state respecting unfair, discriminatory, and other unlawful practices in business, commerce, or trade, and specifically, but not exclusively," a list of enumerated statutes that includes the Prevention of Consumer Fraud Act. Minn. Stat. § 8.31, subd. 1. (Compl. ¶¶ 2, 35; Ex. E-1.) Subdivision 2 empowers the attorney general "to take such steps as are necessary to cause the arrest and prosecution" of violators. (Compl. ¶ 36.) The enumerated range includes a gross misdemeanor. Minn. Stat. § 325F.69, subd. 2(6). (Compl. ¶ 44; Ex. E-7.) Section 8.32, subdivision 2 commands that the attorney general "shall . . . enforce the provisions of law relating to consumer fraud and unlawful practices in connection therewith as set forth in sections 325F.68 and 325F.69." (Compl. ¶ 37.) And in 2025 the Legislature, legislating the Bureau of Criminal Apprehension's own fraud section, provided that "this section has no effect on the authority of the attorney general to investigate and enforce violations or suspected violations of Minnesota civil or criminal law." Minn. Stat. § 299C.061, subd. 4(c). (Compl. ¶¶ 46–47; Ex. E-10.) "Shall" is mandatory. Minn. Stat. § 645.44, subd. 16.

Defendant's own briefing concedes the predicate. His memorandum states that the February 26 letter "does not disavow the AGO's jurisdiction to investigate violations of PCFA, only the ability to investigate and prosecute criminal matters," and that "the AGO does investigate and prosecute Medicaid fraud." (ECF No. 11 at 8.) His reply states that § 8.31, subdivision 2 "simply states that the Attorney General must investigate violations of the PCFA and has the discretion to 'take such steps as are necessary to cause the arrest and prosecution . . . ' of violators." (ECF No. 16 at 5.) The letter told Plaintiff the Legislature did not delegate to the office "the authority to investigate criminal matters." The office's own reply brief says the

Attorney General "must investigate" violations of a statute that carries criminal penalties. The line Defendant draws does not survive the statute he concedes: the enumerated range the office must investigate includes a gross misdemeanor, so an investigation of PCFA violations is an investigation of criminal matters within that range. The opposition placed the text and the concessions before the Court as the predicate finding (ECF No. 15 at 28); the Order assumed the predicate rather than finding it.

Should the Court reach the question rather than assume it, the construction is also settled by authority the Court may consult. The Minnesota Supreme Court has held that the Attorney General "possesses and may exercise, in addition to the authority expressly conferred upon him by statute, all common-law powers incident to and inherent in the office," and that a statute assigning a prosecutorial duty to the county attorney "is in no proper view a limitation upon, nor does it exclude, the general authority of the attorney general upon the same subject," the Attorney General having "the right, in virtue of his office, to co-operate with or act independently of that official in all cases where the public interests justify it." *State ex rel. Young v. Robinson*, 101 Minn. 277, 277 (syllabus), 289, 112 N.W. 269 (1907). That is the concurrent, non-exclusive authority the Complaint pleads. (Compl. ¶¶ 40, 81, 83(b), 92.) The office has read its own authority the same way in the reports the Legislature requires of it. Its report for the biennium ending 1920 states that the Attorney General "has certain powers and duties under the common law in addition to" those the statutes outline, that *Robinson* "settled the law of this state in that regard," and that the office "assists county attorneys in prosecutions, and on occasions supplants them, in prosecutions in district court." Minn. Att'y Gen., *Biennial Report for the Period Ending Dec. 31, 1920*, at 6, 10. And its most recent report, submitted to the Legislature on October 15, 2025, four months before the February 26 letter, states that the office's role is to

"[a]ssist Minnesota's county attorneys in criminal cases and appeals, and lead criminal prosecution of Medicaid Fraud," and to "[p]rotect Minnesotans from fraud and abuse, as authorized by many State statutes, most notably Minn. Stat. § 8.31: 'The attorney general shall investigate . . .'" Minn. Att'y Gen., *Annual Report Required by Minn. Stat. §§ 8.08 and 8.15, subd. 4, Fiscal Year 2025*, at 1 (Oct. 15, 2025); *see id.* at 41 (the Medicaid Fraud Division "investigates and prosecutes health care providers who commit fraud"). These are cited as legal authority on the meaning of the statutes and as official public records, Fed. R. Evid. 201(b)(2), not as evidence of any contested fact.

The correction Plaintiff seeks under this Part is narrow: that the Court decide, rather than assume, whether the February 26 statement of law was false, because on the injury pleaded that question is not beside the point but the point.

D. At a Minimum, the Judgment Must Be Altered to State That the Dismissal Is Without Prejudice.

The Order rests on two grounds: lack of Article III standing and the inapplicability of *Ex parte Young* to a suit otherwise barred by sovereign immunity. (Order at 1, 4–7.) Both are jurisdictional. "A dismissal for lack of standing is a dismissal for lack of subject-matter jurisdiction." *Dalton v. NPC Int'l, Inc.*, 932 F.3d 693, 696 (8th Cir. 2019). And "[a] district court is generally barred from dismissing a case with prejudice if it concludes subject matter jurisdiction is absent." *County of Mille Lacs v. Benjamin*, 361 F.3d 460, 464–65 (8th Cir. 2004) (reversing the with-prejudice portion of a judgment and directing entry of judgment without prejudice); *Hart v. United States*, 630 F.3d 1085, 1091 (8th Cir. 2011) (modifying a jurisdictional dismissal to be without prejudice). Defendant's proposed order asked that the claims be dismissed "WITH PREJUDICE." (ECF No. 13.) The Court did not adopt that language. The Order states only that the Complaint "is DISMISSED" (Order at 8), and the

Judgment repeats it (ECF No. 28). The opposition requested that any dismissal be without prejudice. (ECF No. 15 at 32.)

The Judgment should say what the law requires it to mean. *See* Fed. R. Civ. P. 41(b) (an involuntary dismissal "for lack of jurisdiction" does not operate as an adjudication on the merits). The designation is not academic here: the Order's closing pages speak to the consequences of future filings (Order at 7–8 & n.2), and a judgment silent on prejudice invites a later dispute over its preclusive effect that a single clause resolves now. Plaintiff asks that the Judgment be altered to provide that the Complaint is dismissed without prejudice.

E. In the Alternative, Plaintiff Requests Leave to Amend, and Identifies the Amendments.

The Order denied leave to amend because Plaintiff "already had a chance to press his claims in *Kirchner I*" and "has not explained how he would fix his deficient complaint now for a third time." (Order at 8 n.2.) The first premise counts a Rule 8(a)(2) dismissal for length, which the Eighth Circuit summarily affirmed without opinion, as a chance to press the claims on the merits; this Complaint is the narrowed refiling that dismissal left open, and no amendment of it has been evaluated. (ECF No. 15 at 10–14, 32–33.) The second premise can be answered directly. If the Court concludes that any ground of the Order survives Parts III.A through III.C, Plaintiff would amend to: (1) plead the maintained website disclaimer expressly as the ongoing conduct on which Counts I and II rest, and direct the prospective relief at it in terms; (2) plead the standing paragraph in the first-person form stated in Part III.A, as the addressee of a false statement of the office's legislated authority whose own petition was disposed of by it; (3) reposition Counts III and IV as declaratory relief ancillary to Counts I and II, as the opposition proposed (ECF No. 15 at 28); and (4) conform the quotations at ¶¶ 24, 36, 39, 40 and 41 to the statutory text, as set out in the surreply lodged at ECF No. 22-1, and the quotation of § 8.32 at

¶ 37 to the statute's enumerated form. Each is a correction of form and framing on facts already pleaded; none adds a party, a claim, or a theory.

Post-judgment leave to amend is disfavored, but a district court "may not ignore the Rule 15(a)(2) considerations that favor affording parties an opportunity to test their claims on the merits." *Ryan*, 889 F.3d at 508 (quotation omitted). The opposition asked for leave before any dismissal and offered to file a formal motion with a proposed pleading. (ECF No. 15 at 32–33.) Plaintiff renews that request in the alternative, and will lodge a proposed amended complaint within any period the Court sets.

IV. CONCLUSION

Plaintiff respectfully requests that the Court alter or amend the Judgment by (1) vacating the dismissal and denying Defendant's motion to dismiss as to Counts I and II, with Counts III and IV proceeding as ancillary declaratory relief, on the grounds stated in Parts III.A through III.C; or, if the Court declines that relief, (2) altering the Judgment to provide that the dismissal is without prejudice, and (3) granting leave to amend as stated in Part III.E.

Respectfully submitted,

/s/ Joseph Kirchner

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